

be backed up by evidence. As a rule, demonstrating that the knowledge in question can be obtained from a textbook or monograph will be sufficient.

In T.2704/18 the board dealt in detail with the part played by the skilled person in the assessment under Art. 83 EPC and reiterated that they could supplement the information in the application (gathered from evaluating the claims, description and drawings) with common general knowledge and could also correct any errors identified (see T.169/83, T.206/83 and T.629/05).

In T.2305/11 the application did not give details of how to determine the essential feature (maximum solubility pressure of at most 1 000 bar), but the board accepted the appellant's argument that the skilled person knew of suitable methods. It nevertheless found that crucial information was missing because the application did not disclose that, in many cases, no maximum could be found, or how to proceed in those cases. No useful guidance could be found in the description, and the appellant had failed to show how the skilled person could use his common general knowledge to fill in the gaps in disclosure or overcome the lack of guidance.

In T.2004/14 (absorbent article), the board decided that, in the absence of any indication in the patent in regard to the method (and the test conditions) of determining the absorption capacity, the skilled person would not be able to reliably and repeatedly determine the crucial condition set out in claim 1. The blotter-method was not the only applicable test known by the skilled person and, even if it were, at least the value for the draining pressure to be applied in order to expel interstitial fluids would still be lacking. That, allegedly twenty-four patent publications disclosed the blotter-method did not convince the board since these patents were solely from two corporations. Moreover, it was likely that they would, when applying such a non-standardised blotter-method, perform the test under different conditions, which was exactly what standards aimed to avoid.

In accordance with the established case law (see e.g. T.206/83, T.1040/03), a detailed disclosure is not necessary if the skilled person, who has common general knowledge at his immediate disposal, is capable of putting the invention into practice without the burden of exercising inventive skill. This principle obviously extends to all variants encompassed by a claim (T.1018/05, cited also in T.2301/12 in respect of variants clearly outside the scope of practical application of the claimed subject-matter and values of a parameter not obtainable).

The patent must provide guidance enabling the skilled person to identify the process features decisive in **overcoming a prejudice**. The skilled person should not have to work this out himself (T.419/12).

In T.377/17 the board held that the case law since T.171/84 and T.206/83 had clearly answered the question what sources of information were to be considered for the purposes of Art. 83 EPC, namely only the patent specification (including any sources cited in it) and common general knowledge, i.e. the knowledge potentially available to any skilled person in the field. This did not include secret know-how of individual makers of aerated concreted. How a head of a laboratory would have used such inside know-how to

determine or correct parameters either not or inaccurately referred to in the patent specification was thus irrelevant in establishing whether the conditions of Art. 83 EPC were met (the board refused to order an independent expert opinion). The board also refused a request for referral of a question to the Enlarged Board, reiterating on this occasion what was meant by "skilled person" (point 9 of the Reasons).

T 1861/11 concerned an invention relating to user interfaces. The appellant (applicant) chose to disclose the invention by means of a conceptual metaphor, a so-called "3D motion user interface", and the relevant disclosure was very brief. In the circumstances of the case, the board decided that details that the skilled person would need were not disclosed (Art. 83 EPC not satisfied). Moreover, as a matter of principle, a deficiency in disclosure concerning the conceptual fundamentals of the invention could not be remedied without violating the restrictions codified in Art. 123(2) EPC.

Patent specifications cannot normally contribute to the sufficiency of the disclosure unless they are available to the skilled reader of the patent in question (T 171/84, OJ 1986, 95). By way of exception, however, patent specifications and scientific publications may be considered to form part of the common general knowledge where the invention is in a field of research so new that the relevant technical knowledge is not yet available from textbooks (T 51/87, OJ 1991, 177; see also T 772/89, T 676/94, T 1900/08, T 2196/15). In T 676/94 the board considered that the question whether or not the contents of a technical periodical formed part of the average knowledge of a skilled person when assessing sufficiency of disclosure, should be answered on the basis of the facts and evidence in each particular case.

References to DVB standards were found insufficient to meet the standards of Art. 83 EPC in T 1191/04. In T 417/13 the size of the PVC particles was an important feature. The particle size may vary to a large extent depending on the method of measurement. The description of the application provided only very limited information. The person skilled in the art had thus to rely on his common general knowledge for the selection of an appropriate method of measurement. The board concluded that in the present case of PVC particles the skilled person would not have considered using any method of measurement, but would have chosen a method relying on sieving, such as a method according to ISO standard 1624. It was also decided that in this case the physical and mathematical facts about particle size measurements were notorious.

In T 1608/13 the board noted that a patent document is directed to the skilled person, who interprets it in the light of the common general knowledge in the technical field concerned. Consequently, it is not necessary for all the details of the invention to be specifically described in order for a disclosure to be sufficient. In the present case, in the absence of a description in the patent of a specific measuring method for determining the sieving coefficient of a membrane for the separation of toxic mediators from blood by haemofiltration, the skilled person would first look for applicable standards in the field, if present. Whether other methods for carrying out the measurements were available was not decisive as long as there was no evidence that the results in the specific field of the invention would be contradictory depending on the chosen method. The respondent (opponent) did not provide any such evidence.

In T.521/12 claim 1 could be given different interpretations, in particular, with respect to the relationship between the features of the claim preamble and the features recited in the characterising part. However, as the only issue was sufficiency of disclosure, an interpretation of the claim wording was required only as far as it was relevant for deciding whether Art. 83 EPC was complied with. It was therefore implicit, in the board's view, that the expression "portion of electronic information" in feature (g) could not cover any possible type and format of electronically stored data, but was to be given a meaningful interpretation determined by the function it was expected to perform in the context of the claimed subject-matter. The skilled person wishing to implement the claimed invention would therefore exclude as meaningless and not consistent with the teaching of the application any type of "electronic information" which because of its content and/or format was irrelevant, or unsuitable.

T.658/04 summarised the case law about what forms part of the common general knowledge. The board considered that an expert opinion submitted by the appellant (patent proprietor) which contained general considerations (not supported by verifiable facts) did not form part of the common general knowledge (see also chapter I.C.2.8.1 "Definition of common general knowledge"). See also T.842/14 (quoting G.1/92, OJ 1993, 277), which concerned the requirements that a chemical composition of a commercially available product designated by a trademark in the claim be part of the common general knowledge of the skilled person; and T.2196/15 for an example of difficulties in proving the common general knowledge.

In T.443/11 the board noted that during the course of the proceedings the examining division had argued that claim 1 had to be taken literally. The board disagreed with this statement, since it was established case law of the boards of appeal that claims should be interpreted in the manner that they would be understood by a person skilled in the art. In the context before it the board considered that the skilled person would understand (mathematical operations implemented in electronic devices).

In T.1516/14 the board stated that the consideration as to whether or not a particular feature distinguished the claimed subject matter from the prior art, or indeed whether or not it was merely a statement of something that was inherently true, played no role in assessing sufficiency of disclosure. Nor was it for the board to speculate as to why a particular feature was added to the claim in examination proceedings. The **subjective intentions of the patentee** are relevant for the purposes of interpreting the claims only to the extent that these intentions were explicitly formulated in and therefore derivable from the patent specification itself. The board did not rely solely on internal logic or syntax of the claim to arrive at the conclusion that Art. 83 EPC was satisfied; referring a question in this respect to the Enlarged Board was not justified. See also chapter II.A.6.1 about the contribution of T.1516/14, concerning interpretation of claims and the skilled person's approach meaning as being a purely technical approach.

In T.1845/14 the measurement method for determining the short chain branching distribution (SCBD) was defined in claim 1 to be crystallisation analysis fractionation (CRYSTAF®). As regards the disputed SCBD parameter, the board came to the conclusion that determining an SCBD using the CRYSTAF® technique would have been

routine for the skilled person in the field in question and that they would have been able to do so, in particular for copolymers prepared in accordance with the synthesis taught in the patent, **ignoring**, in view of their knowledge, the misleading passages of the specification which were manifestly erroneous or unrelated to the determination of the SCBD.

In T.2133/14 the board stated in its catchword that "an invention is not insufficiently disclosed in the sense of Art. 83 EPC just because a lack of support in the sense of Art. 84 EPC of a broad claim cannot be resolved by consulting the description". The board observed that the skilled person would have no technical difficulty in implementing a form of interrogation/response-protocol in devices even in a "non-standard scenario" such as a smartphone communicating with a cardiac pacemaker. It also observed that an objection that a claim was too broad to be supported by the description over its full breadth could be addressed by limiting the claim to a breadth which was.

See also T.383/14 (sorting table for grape harvest) in chapter II.C.6.6.1.

4.2. References may also enable the skilled person to carry out an invention

It is established case law that features not mentioned in the application documents themselves but in a document to which they refer may be incorporated into a patent claim if they unequivocally form part of the invention for which protection is sought. However, all the essential structural features thus disclosed which belong together must be incorporated into the claim; it is not permissible to single out a particular one (T.6/84, OJ 1985, 238; cited in numerous decisions).

In T.288/84 (OJ 1986, 128), the board held that where an invention relates to the improvement of prior art originally cited in the description of the invention, a feature described in broad terms in the cited document but not mentioned expressly in the invention is sufficiently disclosed if it is realised in the examples of the invention in the form of an embodiment also mentioned in the reference document.

An invention is also sufficiently disclosed if reference is made to another document in the patent specification and the original description, and the skilled person can obtain from this cross-reference the information required to reproduce the invention but not disclosed in so many words in the description itself (T.267/91, T.611/89). In T.920/92 the board held that this applied irrespective of the language in which it was drafted; (here Japanese).

However, where the reference document was possibly short-lived advertising material, the applicant was wise to incorporate the published information explicitly rather than by mere reference (T.211/83, cited in T.276/99).

In T.737/90 it was explicitly stated that a reference to another document can only be taken into account if the document referred to can be unambiguously identified and the relevant addressees have ready access to it. This depends solely on the facts of the case. Following T.737/90, the board in T.429/96 confirmed that a document incorporated by reference into the text of a European patent application had to become available to the

public at the latest on the **publication date** and not on the **filing date** of the European patent application, in order to be taken into account for the purposes of Art. 83 EPC 1973.

The enabling disclosure of the invention in T 521/10 relied on the content of (US) patent applications incorporated by reference which did not fulfil the requirements set out in T 737/90. In order to be validly incorporated, each document must: (i) be available to the Office on or before the date of filing of the application; and (ii) be available to the public no later than on the date of publication of the application under Art. 93 EPC. As neither of the two documents was made available to the public and the only publication originating from the two documents was a continuation-in-part application which was published on a date later than the publication date of the European application at issue, the two documents were not validly incorporated by reference.

In T 341/04, the question was whether a referenced document, which could be unambiguously identified at the date of filing of the document containing the reference by its document number, but which document itself was "missing" in the sense that it was not available at said date of filing, could be "taken into account" for the purpose of Art. 83 EPC 1973 by relying on information present in a family member of the referenced document. The board answered in the affirmative.

5. Clarity and completeness of disclosure

5.1. General principles

It must be possible to reproduce a claimed step using the original application documents without any inventive effort over and above the ordinary skills of a practitioner (T 10/86). Where an applicant did not furnish details of the production process in the description in order to prevent the invention from being copied easily and the missing information could not be supplied from the general knowledge of a person skilled in the art, the invention was held to be insufficiently disclosed (T 219/85, OJ 1986, 376).

In T 1164/11 the board was not aware of a known physical mechanism according to which light was able to push molecules of a medicament, contained in the matrix of a solidified medicamentous solution, into the skin. The board had serious doubts regarding the claimed interaction of the (laser light) energy emitter with the molecules and the claimed result of penetration of the molecules into the skin. The appellant (applicant) admitted that there might be a **lack of scientific explanation**, but stated that nevertheless a "surprising effect" was achievable with the claimed device "without knowing the real phenomena occurring in the skin". The board accepted that it might not be possible to provide a scientifically sound explanation and that the invention might still be sufficiently disclosed if such an unexpected effect was convincingly demonstrated. However, the original application was devoid of any test results or experimental evidence that could give an indication of light-induced enhancement of penetration of medicament molecules into the skin.